

26VECV02832 26VECV02832

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-08-03

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAV%2C107%2C08%2F03%2F2026

Source SHA-256: c5ba1dd98c811374380227f27bfcab0f35d2cc397196906aa375414c1cdcc40f

Case Number: 26VECV02832 Hearing Date: August 3, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Akop Kvryan,

Plaintiff,

v.

Mercedes Benz USA,

LLC,

Defendant.

Case Number Department

26VECV02832

107

COURT'S [TENTATIVE]

ORDER RE:

Motion
to Compel Arbitration

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

or about March 26, 2024, Plaintiff Akop Kvryan ("Plaintiff") leased a 2023 Mercedes-Benz EQS (the "Vehicle"). (Complaint ¶¶ 5-6.) The Vehicle was defective. (Complaint ¶ 16.)

On

May 13, 2026, Plaintiff filed a complaint against Defendants Mercedes Benz USA, LLC ("Defendant") and Does 1 through 10, alleging causes of action for: (1) breach of implied warranty under the Song-Beverly Warranty Act; (2) breach of express warranty obligations under the Song-Beverly Act; and (3) violation of the Song-Beverly Consumer Warranty Act.

On

June 15, 2026, Defendant filed a motion to compel binding arbitration and motion to stay action (the "Motion"). On July 21, 2026, Plaintiff filed an opposition. On July 27, 2026, Defendant filed a reply.

II.

UNPUBLISHED

CASES

In

reply, Defendant relies on unpublished superior court orders. (Reply p. 5.)

California

Rules of Court, rule 8.1115(a) states: "[e]xcept as provided in (b), an opinion of a California Court of Appeal or superior court appellate division that is not certified for publication or ordered published must not be cited or relied on by a court or a party in any other action." The exceptions listed in California Rules of Court, rule 8.1115(b) do not apply here.

The

court reminds Defendant's counsel of the existence and importance of abiding by the California Rules of Court.

III.

PLAINTIFF'S

OBJECTIONS

Plaintiff

objects to paragraph 2 of Mason Freeman's declaration and Exhibit 1 attached to Freeman's declaration. Paragraph 2 states: "Attached hereto as Exhibit 1 is a true and correct copy of the California Motor Vehicle Lease Agreement, executed by Plaintiff on or about March 26, 2024." (Plaintiff's Objections p. 2, original bolding.) Plaintiff argues the statement lacks foundation and personal knowledge and is hearsay. (Plaintiff's Objections p. 2.)

"For

purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of document authentication." (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218.) "Petitioner need only allege the existence of an agreement and support the allegation as provided in rule 371." (Id. at p. 219, original italics.)

Defendant

is not required to follow the normal procedures of document authentication. Plaintiff's objection is overruled.

IV.

LEGAL

STANDARD

The

court is empowered to compel parties to arbitrate disputes pursuant to an agreement to do so. (Code Civ. Proc., §1281.2.)

"California

law strongly favors arbitration 'as a speedy and relatively inexpensive means of dispute resolution.'" (Villareal v. LAD-T, LLC (2022) 84 Cal.App.5th 446, 455.) "[T]here is a presumption in favor of arbitrability." (Id. at

p. 456.) “However, notwithstanding the policy favoring arbitration, because arbitration is a matter of consent, ‘a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.’” (Id.) Agreements to arbitrate are “valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.” (Id.)

“Because

the existence of the arbitration agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement . . . that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.” (Villareal v. LAD-T, LLC, supra, 84 Cal.App.5th at p. 456, brackets removed.)

V.

DISCUSSION

Motor

Vehicle Lease Agreement:

Defendant

moves to compel arbitration under the Motor Vehicle Lease Agreement (the “Lease”). (Motion p. 6.)

Defendant

submits a declaration by its counsel, Freeman, who states that Exhibit 1 “is a true and correct copy of the . . . Lease . . . executed by Plaintiff on or about March 26, 2024.” (Freeman Declaration ¶ 2.) The Lease contains an arbitration agreement, which states, in relevant part:

Any

claim or dispute, whether in contract, tort, or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue), between you and us or any of our employees, agents, successors, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a “Third Party Beneficiary”), which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall, at the election of either

you, us, or a Third Party Beneficiary, be resolved by a neutral, binding arbitration and not by a court action. Any claim or dispute is to be arbitrated on an individual basis and not as a class action. The arbitration shall be administered by the American Arbitration Association, or by any other organization that you may choose, subject to our or a Third Party Beneficiary's approval. You may get a copy of the rules of the American Arbitration Association by visiting its website at www.adr.org.

(Freeman

Declaration Ex. 1 pdf p. 7.) The Lease is purportedly electronically signed by Plaintiff. (Freeman Declaration Ex. 1 pdf p. 9.)

Authenticity of Plaintiff's Signature

Plaintiff submits a declaration disputing the authenticity of the Order Agreement. (Kvryan Declaration ¶ 3.) Plaintiff states, in relevant part:

In or around March 2024, I leased a 2023 Mercedes-Benz EQS (VIN: W1KCG5FB5PA040972 (the "SUBJECT VEHICLE") through a vehicle broker located in North Hollywood, California. After negotiating the terms of the lease, I went to the broker's office to complete the transaction and take delivery of the SUBJECT VEHICLE. While I was there, I recall signing numerous documents, all of which were signed by hand.

At no point during the transaction do I recall electronically signing the lease for the SUBJECT VEHICLE, whether by email, through an online portal, or by any other electronic means. To the best of my recollection, every document I signed during the transaction was signed by hand.

(Kvryan Declaration ¶¶ 2-3.)

Thus, Plaintiff submits evidence disputing the authenticity of the signature on the Lease submitted by Defendant by submitting a declaration stating all the documents Plaintiff recalls signing were signed by hand and Plaintiff does not recall electronically signing the lease.

Defendant's Arguments in Reply:

Defendant submits no additional evidence with the reply suggesting Plaintiff's signature on the Lease is authentic. Instead, Defendant argues Plaintiff's evidence and the cited authority are insufficient to dispute Defendant's evidence that Plaintiff signed the Lease.

Defendant argues that it submitted the Lease, so Plaintiff bears the burden of producing evidence to challenge the Lease's authenticity. (Reply pp. 2-3.) Defendant states it attached the Lease containing an arbitration agreement and Plaintiff's signature, so the burden shifts to Plaintiff. (Reply p. 3.) Defendant argues Plaintiff submits no admissible evidence disputing authenticity and "[t]he Lease also matches his own pleading." (Reply p. 3.) Defendant notes that "Plaintiff never denies signing. He does not deny leasing the vehicle, entering into the Lease, or that the signature is his; he says only that he does not 'recall electronically signing the lease' and 'that to the best of his recollection,' every document was signed by hand." (Reply p. 3, brackets omitted.) Defendant further notes Plaintiff confirms the transaction, "[a] statement that a party does not remember signing is not a denial that he signed", and "[h]e cannot disclaim the Lease while pleading it as the source of the warranties he sues on." (Reply p. 3.)

As an initial matter, although the complaint refers to a lease, no lease agreement is attached to the complaint. (See Complaint ¶ 6.) Thus, the court is not persuaded that the Lease submitted by Defendant matches any purported lease in Plaintiff's complaint.

Defendant cites *Iyere v. Wise Auto Group* ("Iyere") (2023) 87 Cal.App.5th 747, 755, 757 for the proposition "[a] statement that a party does not remember signing is not a denial that he signed." (Reply p. 3.)

In *Iyere*, the plaintiffs said they signed a stack of documents. (*Iyere*, supra, 87 Cal.App.4th at p. 756.) The plaintiffs submitted declarations stating "I do not recall ever reading or signing any document entitled Binding Arbitration Agreement" and "I do not know how my signature was placed on [the document]." (*Id.*, original brackets.) The Court of Appeal stated the submitted evidence did not create a factual dispute as to whether the plaintiffs signed the agreements because the declarations acknowledged the plaintiffs signed a stack of documents and did not deny the stack included the agreement. (*Id.*) The Court further noted

that “[a]lthough plaintiffs state they do not recall signing the agreement, there is no conflict between their having signed a document on which their handwritten signature appears and, two years later, being unable to recall doing so.” (Id.) Finally, the Court stated that “[i]n the absence of any evidence that their purported signatures were not their own, there was no evidence that plaintiffs did not in fact sign the agreement.” (Id.)

The Court then discussed cases dealing with electronic signatures and said “[w]hile handwritten and electronic signatures once authenticated have the same legal effect, there is a considerable difference between the evidence needed to authenticate the two.” (Iyere, supra, 87 Cal.App.4th at p. 758.) The Court further stated “[i]f a party confronted with his or her handwritten signature on an arbitration agreement is unable to allege that the signature is inauthentic or forged, the fact that that person does not recall signing the agreement neither creates a factual dispute as to the signature's authenticity nor affords an independent basis to find that a contract was not formed.” (Id.)

Plaintiff cites *Espejo v. Southern California Permanente Medical Group* (“*Espejo*”) (2016) 246 Cal.App.4th 1047. (Opposition pp. 6-7.)

In *Espejo*, supra, 246 Cal.App.4th at p. 1062, the Court of Appeal cited *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 844, and stated:

Indeed, Main did not explain that an electronic signature in the name of ‘Ernesto Zamora Ruiz’ could only have been placed on the 2011 agreement ... by a person using Ruiz’s ‘unique login ID and password’; that the date and time printed next to the electronic signature indicated the date and time the electronic signature was made; that all Moss Bros. employees were required to use their unique login ID and password when they logged into the HR system and signed electronic forms and agreements; and the electronic signature on the 2011 agreement was, therefore, apparently made by Ruiz on September 21, 2011, at 11:47 a.m. Rather than offer this or any other explanation of how she inferred the electronic signature on the 2011 agreement was the act of Ruiz, Main only offered her unsupported assertion that Ruiz was the person who electronically signed the 2011 agreement. In the face of Ruiz’s failure to recall electronically signing the 2011 agreement, the fact the 2011 agreement had an electronic signature on it in the name of Ruiz, and a

date and time stamp for the signature, was insufficient to support a finding that the electronic signature was, in fact, 'the act of' Ruiz.

The Court then contrasted the facts in that case to the facts in Espejo, stating:

Turning to the case before us, we find the supplemental Tellez declaration offered the critical factual connection that the declarations in Ruiz lacked. Tellez detailed SCPMG's security precautions regarding transmission and use of an applicant's unique username and password, as well as the steps an applicant would have to take to place his or her name on the signature line of the employment agreement and the DRP. Based on this procedure, she concluded that the "name Jay Baniaga Espejo could have only been placed on the signature pages of the employment agreement and the DRP by someone using Dr. Espejo's unique user name and password.... [¶] Given this process for signing documents and protecting the privacy of the information with unique and private user names and passwords, the electronic signature was made by Dr. Espejo" on the employment agreement and the DRP at the date, time, and IP address listed on the documents. These details satisfactorily meet the requirements articulated in Ruiz and establish that the electronic signature on the DRP was "the act of" Espejo (Civ.Code, § 1633.9, subd. (a)), and therefore provide the necessary factual details to properly authenticate the document.

(Espejo, *supra*, 246 Cal.App.4th at p. 1063.)

Defendant argues Plaintiff's cited authority is inapposite because Plaintiff submits no admissible evidence challenging the signature's authenticity. (Reply p. 3.) However, Plaintiff submits a declaration signed under penalty of perjury stating they do not recall electronically signing the Lease and stating Plaintiff only recalls signing documents by hand. (Kvryan Declaration ¶ 3.) The court understands Plaintiff's declaration could be viewed as an admission by Plaintiff that Plaintiff signed a lease because Plaintiff admits to signing numerous documents "by hand." (Kvryan Declaration ¶ 2.) But the issue here is whether Plaintiff signed the Lease submitted by Defendant. That Lease contains an electronic signature. (Freeman Declaration Ex. 1 pdf p. 9.) Plaintiff states in their declaration they have no recollection of signing the Lease "by email, through an online portal, or by any other electronic means." (Kvryan Declaration ¶ 2.) The court interprets this as a denial that the electronic signature located on the Lease

is Plaintiff's signature.

"The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature." (Iyere, supra, 87 Cal.App.5th at p. 755.)

The Lease purportedly contains Plaintiff's electronic signature. Thus, Plaintiff cannot, by looking at the Lease, verify the signature is inauthentic or forged. (See Iyere, supra, 87 Cal.App.4th at p. 758.)

Like Espejo, Plaintiff submits evidence he only recalls signing documents by hand and has no recollection of electronically signing the Lease. (Kvryan Declaration ¶¶ 2-3.) The court finds Plaintiff's recollection of signing documents by hand, but denial of signing documents electronically, is sufficient to create a factual dispute and shift the burden back to Defendant to prove, by a preponderance of the evidence, the signature's authenticity.

In Espejo, supra, 246 Cal.App.4th at p. 1062, the Court noted that in Ruiz, "the fact the 2011 agreement had an electronic signature on it in the name of Ruiz, and a date and time stamp for the signature, was insufficient to support a finding that the electronic signature was, in fact, 'the act of' Ruiz." The Court contrasted that to the evidence in Espejo, where the moving party submitted evidence including "security precautions regarding transmission and use of an applicant's unique username and password, as well as the steps an applicant would have to take to place his or her name on the signature line of the employment agreement and the DRP." (Id.) The Court held this met the standard articulated in Ruiz and established the electronic signature was "the act of" Espejo. (Id.)

The only evidence submitted by Defendant is a declaration by Defendant's counsel stating a "Exhibit 1 is a true and correct copy of the California Motor Vehicle Lease Agreement, executed by Plaintiff on or about March 26, 2024." (Freeman Declaration ¶ 2, original bolding.) This evidence is insufficient to show the electronic signature on the Lease was the act of Plaintiff.

VI.

CONCLUSION

For
the foregoing reasons, the Motion is denied.

Dated: August 3,
2026

Hon. Eric Harmon

Judge of the Superior Court